

Docket Number 1949F

WALTER MUZORORI

(Complainant)

Versus.

CANADA STATES AFRICAN LINES (CSAL)

(Respondents)

FEDERAL MARITIME COMMISSION

(Formal Complaint)

WASHINGTON, DC

COMPLAINANT'S BRIEF

TO THE HONORABLE COMMISSION

I am an honest, hardworking individual getting into a trucking business in Africa. I purchased two tractor trucks in Wilmington, North Carolina and contracted CSAL to transport them via ship to Walvis Bay, Namibia in Africa. The transportation of the trucks by CSAL went horribly wrong as the carrier (CSAL) did not discharge my cargo at the agreed port of destination resulting in crippling my business; I was left in huge debt and close to bankruptcy.

I come to the commission to seek redress as all efforts to resolve the matter amicably with CSAL have failed. I feel it is a case of large corporate organization taking advantage of a small man and dragging the issue so that I just give up. I also note that if I was permanently based in Africa I would not have been able to seek this redress with the commission and CSAL would have just gotten away with this malpractice.

I seek redress of the commission in line with the spirit per your mission statement and policy declaration:

"To foster a fair, efficient and reliable international ocean transportation system and to protect the public from unfair and deceptive practices"

Declaration of Policy

To achieve the policies declared in Section 2 the Commission is authorized to protect the consumer, the shipper and the public to maintain an orderly and responsible development of international ocean shipment to supervise and control the ocean common carriers known as Marine Terminal Operators in the Shipping Act and to investigate the complaints lodged against and if necessary to impose penalties upon the ocean common carriers

This present case was filed under the Shipping Act. The purpose of enacting the Shipping Act was to enhance not to limit the spirit of the common law rule. The Shipping Act was enacted to provide an efficient and economic transportation system in the ocean commerce of the United States to promote the growth and development of the United States exports through competitive and efficient ocean transportation and to establish a nondiscriminatory regulatory process for the common carriage of goods by water The Shipping Act Section 2.

Title 46 › Subtitle IV › Part A › Chapter 411 of the Shipping Act provides a list of actions that are prohibited of the ocean carriers.

CSAL violated Section 46 U.S. Code § 41102 - General prohibitions

The Shipping Act which prohibits the common carrier from operating in contrary to the agreement – see section below of the code

“(b) Operating Contrary to Agreement.— A person may not operate under an agreement required to be filed under section 40302 or 40305 of this title if

(2) the operation is not in accordance with the terms of the agreement or any modifications to the agreement made by the Federal Maritime Commission.

(c) Practices in Handling Property.— A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

CSAL violated the sections quoted above by not delivery my trucks at the agreed port of destination

Chronology of events: CSAL Operated Contrary to Agreement.

1. On May 1st 2014 I delivered my vehicles (2x Volvo truck heads model VNL 64T630) with the shipping line CSAL, scheduled to be shipped to Cape Town South Africa, aboard Atlantic Impala vessel.
2. Tuesday May 13, 2014 CSAL invoiced me for the movement to my cargo, total invoice is xxxx – **SEE EXHIBIT 1.**
3. On Thursday May 15, 2014 I sent an email requesting change of port of destination from Cape Town, South Africa to Walvis Bay, Namibia – **SEE EXHIBIT 2**
4. On Tuesday May 20th 2014, CSAL accepted to change of Port of Discharge from Cape Town to Walvis Bay, - **SEE EXHIBIT 3**
5. CSAL sent me an updated draft bill of lading with change now showing Walvis Bay as final destination – **SEE EXHIBIT 4 and supporting emails**

6. Tuesday May 27th shipping line accepted partial payment for shipping charges from CITADEL Federal credit union, the other half was later received from California from my partner (shipping bill was paid in full)
7. Tuesday May 27th, CSAL requested from me the clearing agent information in Walvis Bay Namibia. Since I did not have one, I requested that the shipping line recommend one and they provided me with two companies they use. I went with their referral and appointed a company called Wokers Freight in Namibia
8. May 30th, 2014 CSAL issued original documentation to be used for clearing my cargo to Woker Freight Namibia (Walvis Bay), a Final bill of Lading clearly showing all the details which to my knowledge is our final contractual agreement
SEE EXHIBIT 5, clearly showing a stamped landing order from the Ministry of Finance Customs Republic of Namibia on June 3rd, which was clearly generated from the paperwork provided by CSAL.
9. On June 1st, 2014 I sent my (2) drivers and a representative to Walvis Bay Namibia to collect my cargo. They stayed at the port for (4) days, only to find out that my cargo was not discharged/offloaded in Walvis Bay as per our agreement.
10. I contacted the shipping line inquiring why my cargo was not at Walvis Bay as per the agreement.

11. CSAL HQ in Canada (correspondence with Kate (csal employee) at that point did not even know that my cargo was not discharged in Walvis Bay, in fact Kate initial response was that it is impossible that they did not discharge my cargo in Walvis
12. We later ascertained that my cargo was still on board the vessel and that vessel was now docked in Cape Town waiting to discharge.
13. We requested CSAL to re-route our cargo back to Walvis Bay and for reasons best known CSAL, my request was not entertained.
14. I specifically told CSAL that my cargo cannot be discharged in Cape Town as we have no arrangements, agents etc to handle our cargo there - **SEE EXHIBIT 6**. In Cape Town, South Africa, cargo that is dumped without having an appointed clearing agent attracts punitive penalties as a deterrent to shippers and shipping lines in dumping goods in South Africa.
15. We also want to state on record that we made all arrangements for our cargo at Walvis Bay, Namibia not at Cape Town, South Africa.
16. To my surprise CSAL dumped my cargo in Cape Town without my consent, even though I specifically told them to respect our contract. The cargo was therefore discharged at an incorrect port with no local agent to clear the goods.
17. My partner (in Africa) and I spent the great part of period between June 6 to June 19, 2014 in serious engagements with CSAL to move our cargo back to port of Walvis Bay as per contract.

18. CSAL was extremely unhelpful; they sent us from pillar to post. After a lot of correspondence, CSAL advised us to submit a claim which they would pass to their insurers
- **SEE EXHIBIT 7**
19. CSAL also asked us to mitigate loss by making alternative arrangements to move our cargo to final destination, we did precisely that.
20. I incurred huge unplanned expenses that have completely ruined my business and deliverance of contracts I had with my customers.
21. I contacted the CSAL on numerous times requesting them to fix the issue. To date the shipping company has not issued an apology or assisted in any way with the exorbitant charges that I have incurred in Cape Town.
22. Because our cargo was discharged at the wrong port destination by CSAL, we incurred direct costs amounting to US\$ 21,948 (**see recon and supporting documentation – EXHIBIT 3**) to move my cargo from Cape Town back to Namibia, which was our intended Port of Discharge.
23. These costs are the main direct costs associated with moving our cargo from port of Cape Town to Namibia, which were completely avoidable had CSAL delivered our cargo in Namibia, port of Walvis Bay as contracted. I therefore demanded that CSAL compensate me in full for failing to fulfil our contractual agreement.

24. CSAL has refused to cooperate hence my approach to FMC

25. I contacted Federal Maritime Commission with my dispute,

26. When FMC contacted CSAL to try and resolve this issue, CSAL, offered \$5,000 (**see**

EXHIBIT 8. I refused the offer as I spent almost \$22,000 moving my cargo from Cape Town and CSAL offer is well short of my losses not mentioning the opportunity costs I incurred as well the trauma I experienced with this transaction

27. I have attached all necessary documents to back up my claim and will submit any other information that may be required.

Complainants Appendix

Exhibit 1: Invoice to transport the goods

Exhibit 2: Email requesting change of port of destination from Cape Town to Walvis Bay

Exhibit 3: Email accepting change of port of destination.

Exhibit 4: New bill of lading showing Walvis Bay

Exhibit 5: Stamped Bill of Lading by the Ministry of Finance Namibia.

Exhibit 6: Email to CSAL clearly stating that Cape Town was not an option.

Exhibit 7: Email from CSAL advising me to move my cargo and submit receipts for reimbursement.

Exhibit 8: Offer from CSAL .

Exhibit 2 of 3 change of POD

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From: CISN Ekaterina Fouxon

Sent: Monday, May 19, 2014 2:06 PM

To: 'walter muzorori'; CSALINE Ekaterina Fouxon; CSALINE Eugene Nutovich; CISN Yuliya Nasedkina

Cc: rmachumi@gmail.com

Subject: RE: RE: RE: RE: Inv. 2005571 - S002863CH/BACP03140002 / Atlantic Impala S403 POD change to WV

Hi Walter,

Please find attached CSAL bank details for wire payment.

Best Regards,

Kate (Ekaterina) Fouxon

Canada States Africa Line

478 McGill Street | Montreal | Quebec | H2Y 2H2 | Canada

(O) +1.514.940.0660 | (D) +1.514.940.6611 ext 220 | (F) +1.514.940.6600

Skype: [ekaterina.fouxon.cisn](https://www.skype.com/user/ekaterina.fouxon.cisn) | E-mail: kate@csaline.com | www.csaline.com

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From: walter muzorori [<mailto:wmuzorori@yahoo.com>]

Sent: Monday, May 19, 2014 1:46 PM

To: CSALINE Ekaterina Fouxon; CSALINE Eugene Nutovich; CISN Yuliya Nasedkina; CISN Ekaterina Fouxon

Cc: rmachumi@gmail.com

Subject: Re: RE: RE: RE: Inv. 2005571 - S002863CH/BACP03140002 / Atlantic Impala S403

Kate,

We have decided to go with Walvis Bay. Please let me know if there is something to provide on my end.
I also just left the bank and they have requested full wire institutions in order for me to complete the transfer.
Thank you

Sent from Yahoo Mail on Android

478 McGill Street | Montreal | Quebec | H2Y 2H2 | Canada
(O) +1.514.940.0660 | (D) +1.514.940.6611 ext 241 | (F) +1.514.940.6600
E-mail: tanya@csaline.com | www.csaline.com

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From: walter muzorori [<mailto:wmuzorori@yahoo.com>]

Sent: Tuesday, May 27, 2014 11:51 AM

To: CSALINE Tanya Gorbacheva

Cc: rmachumi@gmail.com; CSALINE Anna Bachkeeva; CSALINE Charis Hansen; CSALINE Ekaterina Fouxon; CSALINE Eugene Nutovich

Subject: Re: RE: RE: RE: RE: RE: Inv. 2005571 - S002863CH/BACP03140002 / Atlantic Impala S403 POD change to WV

Tanya

The other half was posted after C.O.B eastern time, so it should reflect today.

Sent from Yahoo Mail on Android

From: CSALINE Tanya Gorbacheva <tanya@csaline.com>;

To: 'walter muzorori' <wmuzorori@yahoo.com>;

Cc: rmachumi@gmail.com <rmachumi@gmail.com>; CSALINE Anna Bachkeeva <anna@csaline.com>; CSALINE Charis Hansen <charis@csaline.com>; CSALINE Ekaterina Fouxon <kate@csaline.com>; CSALINE Eugene Nutovich <eugene@csaline.com>;

Subject: RE: RE: RE: RE: RE: Inv. 2005571 - S002863CH/BACP03140002 / Atlantic Impala S403 POD change to WV

Sent: Tue, May 27, 2014 3:42:26 PM

Good morning Walter,

We got you partial payment from CITI bank US.

Thank you,

Best Regards,

Tanya Gorbacheva

Canada States Africa Line

478 McGill Street | Montreal | Quebec | H2Y 2H2 | Canada
(O) +1.514.940.0660 | (D) +1.514.940.6611 ext 241 | (F) +1.514.940.6600

Exhibit 4: Final destination Walvis Bay

SHIPPER / EXPORTER (COMPLETE NAME AND ADDRESS) WALTER MUZORORI 344 REDBUD DRIVE OXFORD PA 19363 USA TEL: 484-880-5964		BOOKING NO. S002863CH EXPORT REFERENCES	BILL OF LADING NO. BACP03140002
CONSIGNEE (COMPLETE NAME AND ADDRESS) RONALD MACHUMI 19 UITERWYK STREET VAN REEBIEKSHOFF BELLVILLE 7530 CAPE TOWN SOUTH AFRICA		FORWARDING AGENT, F.M.C. NO.	
NOTIFY PARTY (COMPLETE NAME AND ADDRESS) WOKER FREIGHT SERVICES PTY LTD THE MARITIME BUILDING 2 THIRD STREET PO BOX 4 WALVIS BAY, NAMIBIA TEL: +264642012211 CONTACT@WFS.COM.NA		ALSO NOTIFY-ROUTING & INSTRUCTIONS	
PLACE OF INITIAL RECEIPT*	PLACE OF INITIAL RECEIPT**	POINT AND COUNTRY OF ORIGIN:	
VESSEL ATLANTIC IMPALA	VOY. S403	FLAG MALTA	PORT OF LOADING BALTIMORE
LOADING PIER / TERMINAL		PLACE OF DELIVERY BY ON-CARRIER**	
PORT OF DISCHARGE WALVIS BAY		PLACE OF DELIVERY BY ON-CARRIER**	

PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE

Container No./Seal No. Marks and Numbers	No. of Pkgs.	Description of Packages and Goods	Gross Weight KGS	Measure CBM
	2 X	UNIT(S)	12700.00	150.00
	---	ROAD TRACTORS, USED	-----	-----
	2	VIN: 4V4NC9GH35N396534 - VOLVO 2005 VIN: 4V4NC9GHX5N396529 - VOLVO 2005 VEHICLES NEW OR USED RECEIVED WITHOUT TECHNICAL INSPECTION AND WITHOUT CHECKING EQUIPMENT AND ACCESSORIES INSIDE OR OUTSIDE AND ANY LOOSE ITEMS INSIDE VEHICLE, THEREFORE CARRIER, SHIP OWNER, STEVEDORE AND TERMINAL OPERATORS NOT RESPONSIBLE FOR ANY LOSS OR DAMAGE OF WHATEVER CAUSE AND WITHOUT LIABILITY AS TO CONDITION OF VEHICLE. ***** FREIGHT PREPAID ***** AES ITN: X20140507396159 "CARRIED ON DECK WITH SHIPPER'S PERMISSION AND KNOWLEDGE, CARRIER IS WITHOUT LIABILITY FOR LOSS AND DAMAGE HOWSOEVER CAUSED"	12700.00	150.00

THESE COMMODITIES, TECHNOLOGY OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS.
DIVERSION CONTRARY TO U.S. LAW PROHIBITED.

RECEIVED On Board the sealed Container or Packages or other shipping units said to contain the goods described above in apparent good order and condition unless otherwise stated, weight, measure, marks, numbers, quality, contents and value unknown, for transport and delivery at the port or place stated herein unto Consignees or their Assigns, they paying all freight due plus other Charges incurred in accordance with the Terms and Conditions contained on the face and back of this Bill of Lading.

IN ACCEPTING this Bill of Lading, Merchant expressly agrees that Containers may be stowed on deck without notice pursuant to Clause 10 on the back of this Bill of Lading, and accepts and agrees to all the following terms and conditions (including definitions) whether written, printed, stamped or otherwise incorporated, as fully as if they were all signed by Merchant.

DELIVERY OPTIONS for Containerized Goods: (A) direct unstuffing in the port after expiration of free time period; (B) Carrier haulage arrangements under the inland rates of Carrier payable in advance; and (c) Merchant haulage subject to either deposit with Carrier of full replacement value of the Container or other security arrangements acceptable to Carrier.

Note: "apparent good order and condition" when used with reference to Goods that are metal or wood/paper products does not mean that, when received, such Goods or the packaging thereof were free of visible staining, chafing, cutting or breakage, or of moisture, or of rust, oxidation or other consequences thereof, or that the packaging and marking of the Goods were adequate to ensure their safe transit and proper delivery. If the shipper so requests, a substitute bill of lading will be issued omitting the foregoing definition and setting forth any notations as to staining, chafing, cutting, breakage, moisture, etc. that may appear on the mates' or tally clerks' receipts. [Terms and Conditions continued on the back hereof]

* Applicable only when document used for through-transport.

** For information only, does not imply through-transportation.

A set of 3 Bills of Lading (excluding copies) is hereby issued by Carrier, all of the same tenor and date, one of which being accomplished the others shall be void. One original Bill of Lading must be surrendered for delivery of Goods.

ON BEHALF OF MASTER

By: _____

ISSUED AT:

DATED: 05.10.2014

MO/DAY/YR

45

~~10339523~~

MINISTRY OF FINANCE
Namibian Ports Authority Date Stamp
CUSTOMS & EXCISE

03-06-2014

WALVIS BAY
IMPORT NO 2
Customs and Excise Date Stamp
REPUBLIC OF NAMIBIA

Signature of Company

WORKER FREIGHT SERVICES (PTY) LTD.

166 3RD STREET EAST WALVIS BAY NAMIBIA

Tel No: 09284 64 2012075

Name of Authorised Signatory:

INDINA

Date of Issue: 03-Jun-14

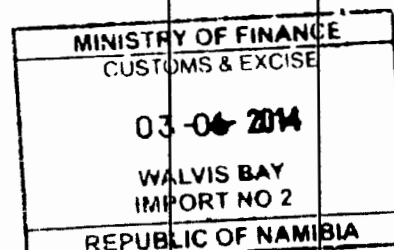
WALVIS BAY

Signature: [Signature]

166, 3rd Street, Walvis Bay

SHIPPER / EXPORTER (COMPLETE NAME AND ADDRESS) WALTER MUZORORI 344 REDBUD DRIVE OXFORD PA 19363 USA TEL: 484-880-5964		BOOKING NO. S002863CH EXPORT REFERENCES	BILL OF LADING NO. BACP03140002
CONSIGNEE (COMPLETE NAME AND ADDRESS) MR RONALD MACHUMI 5 BARBOUR ROAD CRANBORNE, HARARE, ZIMBABWE		FORWARDING AGENT, F.M.C. NO.	
NOTIFY PARTY (COMPLETE NAME AND ADDRESS) WOKER FREIGHT SERVICES PTY LTD THE MARITIME BUILDING 2 THIRD STREET PO BOX 4 WALVIS BAY, NAMIBIA TEL: +264642012211 CONTACT@WFS.COM.NA		ALSO NOTIFY-ROUTING & INSTRUCTIONS	
PLACE OF INITIAL RECEIPT*	PLACE OF INITIAL RECEIPT**	POINT AND COUNTRY OF ORIGIN	
VESSEL ATLANTIC IMPALA	VOY. S403	FLAG MALTA	PORT OF LOADING BALTIMORE
PORT OF DISCHARGE WALVIS BAY, NAMIBIA	PLACE OF DELIVERY BY ON-CARRIER*	PLACE OF DELIVERY BY ON-CARRIER**	

PARTICULARS FURNISHED BY SHIPPER -- CARRIER NOT RESPONSIBLE				
Container No./Seal No. Marks and Numbers	No. of Pkgs.	Description of Packages and Goods	Gross Weight KGS	Measure CBM
	2 X	UNIT(S)	12700.00	150.00
	---	ROAD TRACTORS, USED		
	2	VIN: 4V4NC9GH35N396534 - VOLVO 2005	12700.00	150.00
		VIN: 4V4NC9GHX5N396529 - VOLVO 2005		
		VEHICLES NEW OR USED RECEIVED WITHOUT TECHNICAL INSPECTION AND WITHOUT CHECKING EQUIPMENT AND ACCESSORIES INSIDE OR OUTSIDE AND ANY LOOSE ITEMS INSIDE VEHICLE, THEREFORE CARRIER, SHIP OWNER, STEVEDORE AND TERMINAL OPERATORS NOT RESPONSIBLE FOR ANY LOSS OR DAMAGE OF WHATEVER CAUSE AND WITHOUT LIABILITY AS TO CONDITION OF VEHICLE. **** FREIGHT PREPAID **** AES ITN: X20140507396159 "CARRIED ON DECK WITH SHIPPER'S PERMISSION AND KNOWLEDGE, CARRIER IS WITHOUT LIABILITY FOR LOSS AND DAMAGE HOWSOEVER CAUSED"		



THESE COMMODITIES, TECHNOLOGY OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS.
DIVERSION CONTRARY TO U.S. LAW PROHIBITED.

RECEIVED On Board the sealed Container or Packages or other shipping units said to contain the goods described above in apparent good order and condition unless otherwise stated, weight, measures, marks, numbers, quality, contents and value unknown, for transport and delivery at the port or place stated herein unto Consignees or their Assigns they paying all freight due plus other Charges incurred in accordance with the Terms and Conditions contained on the face and back of this Bill of Lading.
IN ACCEPTING this Bill of Lading, Merchant expressly agrees that Consignees may be stored on deck without notice pursuant to Clause 10 on the back of this Bill of Lading, and accepts and agrees to all the following terms and conditions (including definitions, whether written, printed, stamped or otherwise incorporated, as fully as if they were all signed by Merchant).
DELIVERY OPTION for Consignees Goods: (A) those unloading in the port after expiration of free time period; (B) Carrier's handling arrangements under the inland rates of Carrier payable in advance; and (C) Merchant's handling subject to either deposit with Carrier of full replacement value of the Container or other security arrangements acceptable to Carrier.
Note: "apparent good order and condition" when used with reference to Goods that are metal or wood/paper products does not mean that, when received, such Goods or the packaging thereof were free of visible staining, chafing, cutting or breakage, or of moisture, or of rust, corrosion or other consequences thereof, or that the packaging and marking of the Goods were adequate to ensure their safe transit and proper delivery. If the shipper so requests, a substitute bill of lading may be issued omitting the foregoing definition and setting forth any notations as to staining, chafing, cutting, breakage, moisture, etc., that may appear on the mate's or tally clerk's receipts. [Terms and Conditions contained on the back hereof]
* Applicable only when document used for through-transport
** For information only, does not imply through-transportation
A set of 3 Bills of Lading (including copies) is hereby issued by Carrier, all of the same tenor and date, one of which being accomplished the others shall be void. One original Bill of Lading must be surrendered for delivery of Goods.

ON BEHALF OF MASTER

By: _____

ISSUED AT:

DATED: 05.10.2014

MO/DAY/YR

RELEASE ORDER

OFFICE CODE: WALV Walvis Bay

TAX CODE	AMOUNT PAID	AMOUNT DEFERRED	RECEIPT DETAILS
Import Customs Duty (ICD):	0.00	42644.40	Receipt : () of
AdValorem Duty (ADV):	0.00	0.00	Total Paid : 0.00
Excise Dut. (EXC):	0.00	0.00	Printed on : 03/06/2014
Value Added Tax (VAT):	0.00	35181.62	Time: 12:09:25
Other taxes :	0.00	0.00	
TOTAL:	0.00	77826.02	

DECLARANT : WOK001	WOKER FREIGHT SERVICES (PTY) LTD P.O. BOX 4 WALVIS BAY	IMP/EXP :	MR RONALD MACHUMI 5 BARBOUR ROAD CRANBORNE HARARE, ZIMBABWE
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DECLARATION TYPE: IM 8	REGISTRATION: C22405 of 03/06/2014	Total Packages: 2 No. Of Items: 2
	ASSESSMENT: A22183 of 03/06/2014	

Marks and Numbers	No. Packages	Type of packages	Gross Weight	Supplementary Quantity
	1	LOOSE	12700.00	1.00

ITEM DESCRIPTION : -- Road tractors for semi-trailers of a
vehicle mass EXCEEDING 1600 Kg
MODEL, 2005

PARTICULARS: ROAD TRACTOR VOLVO
CHS:4V4NC9GH35N396534

LICENSE DETAILS:
ADDITIONAL INFO: BOND:KUC-WFS001 PN:0012403015

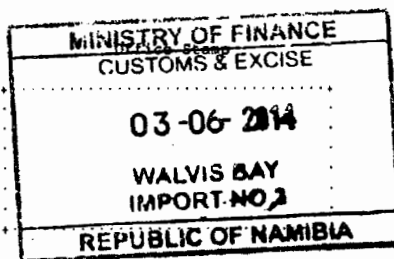
1	LOOSE	12700.00	1.00
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ITEM DESCRIPTION : -- Road tractors for semi-trailers of a
vehicle mass EXCEEDING 1600 Kg
MODEL, 2005

PARTICULARS: ROAD TRACTOR VOLVO
CHS:4V4NC9GHX5N396529

LICENSE DETAILS:
ADDITIONAL INFO:

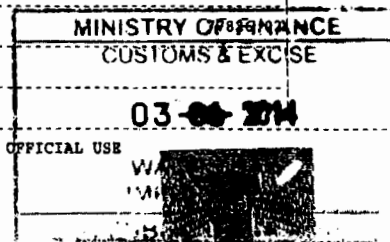
Release Authorised by



Total
Gross : 25400.000
Weight

Signature of Officer

SAD 500 - CUSTOMS DECLARATION FORM				1. DECLARATION		A. OFFICE OF DESTINATION OR DEPARTURE	
2. EXPORTER/CONSIGNOR		TIN	XXXXXXXXXXXXXXXXXX		IM	8	OFFICE CODE WALV
		BSIC			3. FORMS	4.	REGISTRATION NO. & DATE*
WALTER MUZORORI 344 REDBUD DRIVE OXFORD PA 19363 USA					1	2	C 22405 03/06/2014
8. IMPORTER/CONSIGNEE		TIN			5. ITEMS	6.	7. DECLARANT REF. NUMBER
		BSIC			2		2014 / SSI00007164
MR RONALD MACHUMI 5 BARBOUR ROAD CRANBORNE HARARE, ZIMBABWE					9.	10.	11.
					12.	13.	13A. INVOICE No. & DATE
14. DECLARANT/AGENT		TIN	WOK001		15. COE	16. COO	17. COD
WOKER FREIGHT SERVICES (PTY) LTD P.O. BOX 4 WALVIS BAY					US		ZW
		20. DELIVERY TERMS CIP					
18. IDEN., DATE AND NATIONALITY TRANSPORT AT ARRIVAL		19. CONTAINER		22. CURRENCY AND TOTAL FOB VALUE		23. RATE OF EXCHANGE	
ATLANTIC INPALA S403		0/1		NAD 213222.00		1.0000	
21. IDEN., DATE AND NATIONALITY TRANSPORT AT FRONTIER		28.		24. OTHER COSTS DETAILS			
ATLANTIC INPALA S403				CURRENCY		AMOUNT	
25. TWP		26. TMI	27.	FREIGHT		NAD	10661.10
1		XX		INSURANCE			
29. OOR		30.		OTHER			
WALV Walvis Bay							
31. MARKS AND NUMBERS		ROAD TRACTOR VOLVO CHS:4V4NC9GH35N396534		32. ITEM NO		33. COMMODITY CODE	
DESCRPTN OF GOODS		1		1		87012020 000	
NUMBER & TYPE OF PACKAGES		1		OO		LOOSE	
CONTAINER NUMBERS				34. COC		35. G MASS KGS.	
				US		12700.00	
DESCRIPTION				37. CPC		38. N. MASS KGS.	
-- Road tractors for semi-trailers of a vehicle mass EXCEEDING 1600 Kg MODEL, 2005				8000		000	
BOND: KUC-WFS001 PN:0012403015				40. SUMMARY DECLARATION/PREV. DOCUMENT			
				41. SUPP. UNITS		42. CUSTOMS VAL	
				a. 1.00		106611.00	
				b.			
44. LICENCE NUMBER		DEDUCTED VALUE		DEDUCTED QUANTITY		EX. WAREHOUSE CODE	
ADDITIONAL INFORMATION						45.	
PRODUCED IN BOND (R.I.B.) & DATE		REBATE CODE		46. STATISTICAL VALUE			
BOND: KUC-WFS001 PN:0012403015				111942.00			
47. TYPE		DUTY/TAX BASE		RATE		AMOUNT	
TAXES & DUTIES		ICD		106611.00		20.0000	
		VAT		117272.10		15.0000	
						17590.81	
						0	
						SUMMARY OF TOTAL DUTIES AND TAXES	
						TOTAL DUTIES & TAXES	
						0.00	
						GUARANTEE AMOUNT	
						OTHER	
TOTAL OF FIRST ITEM OF THIS PAGE ==>		38913.01		0		TOTAL PAYABLE	
DECLARATION						FOR OFFICIAL USE	
I, <i>Abdu</i>		WOKER FREIGHT SERVICES (PTY) LTD					
being the <i>Agent</i>		hereby declare that the particulars herein are					
true and correct and comply with the provisions of the Customs and Excise Act							
Signature <i>Abdu</i>		I.D number		2014 2027		date 03-06-2014	



31. PACKAGES AND DESCRTN OF GOODS	MARKS AND NUMBERS	ROAD TRACTOR VOLVO CHS:4V4NC9GH15N396529	32. ITEM NO 2	33. COMMODITY CODE 87012020 000
NUMBER & TYPE OF PACKAGES	1	OO	LOOSE	
CONTAINER NUMBERS				
DESCRIPTION	-- Road tractors for semi-trailers of a vehicle mass EXCEEDING 1600 Kg MODEL, 2005			
34. COC US	35. G MASS KGs. 12700.00	36. PREFS		
37. CPC 8000	000	38. N. MASS KGs. 12700.00	39. QUOTA	
40. SUMMARY DECLARATION/PREV. DOCUMENT				
41. SUPP. UNITS a. 1.00 b.	42. CUSTOMS VAL 106611.00	43. V.M		

44. ADDITIO. INFO. PRODUCED DOCUMENT	LICENCE NUMBER	DEDUCTED VALUE	DEDUCTED QUANTITY	EX. WAREHOUSE CODE	45.
REMOVAL IN BOND (R.I.B) & DATE	REBATE CODE			46. STATISTICAL VALUE 111942.00	

31. PACKAGES AND DESCRTN OF GOODS	MARKS AND NUMBERS		32. ITEM NO	33. COMMODITY CODE
NUMBER & TYPE OF PACKAGES				
CONTAINER NUMBERS				
DESCRIPTION	SUMMARY DECLARATION/PREVIOUS DOCUMENT			
34. CNTY OF ORGN	35. G MASS KGs.	36. PREFS		
37. CPC		38. NET MASS KG	39. QUOTA	
41. SUPP. UNITS a. b.	42. CUSTOMS VAL	43. V.M		

44. ADDITIO. INFO. PRODUCED DOCUMENT	LICENCE NUMBER	DEDUCTED VALUE	DEDUCTED QUANTITY	EX. WAREHOUSE CODE	45.
REMOVAL IN BOND (R.I.B) & DATE	REBATE CODE			46. STATISTICAL VALUE	

31. PACKAGES AND DESCRTN OF GOODS	MARKS AND NUMBERS		32. ITEM NO	33. COMMODITY CODE
NUMBER & TYPE OF PACKAGES				
CONTAINER NUMBERS				
DESCRIPTION	SUMMARY DECLARATION/PREVIOUS DOCUMENT			
34. CNTY OF ORGN	35. G MASS KGs.	36. PREFS		
37. CPC		38. NET MASS KG	39. QUOTA	
41. SUPP. UNITS a. b.	42. CUSTOMS VAL	43. V.M		

44. ADDITIO. INFO. PRODUCED DOCUMENT	LICENCE NUMBER	DEDUCTED VALUE	DEDUCTED QUANTITY	EX. WAREHOUSE CODE	45.
REMOVAL IN BOND (R.I.B) & DATE	REBATE CODE			46. STATISTICAL VALUE	

47. TAXES & DUTIES	TYPE	DUTY/TAX BASE	RATE	AMOUNT	M.P	TYPE	DUTY/TAX BASE	RATE	AMOUNT	M.P
	ICD	106611.00	20.0000	21322.20	0					
	VAT	117272.10	15.0000	17590.81	0					
TOTAL OF FIRST ITEM OF THIS PAGE ==>						TOTAL OF SECOND ITEM OF THIS PAGE ==>				
	TYPE	DUTY/TAX BASE	RATE	AMOUNT	M.P		TYPE	AMOUNT	M.P	
TOTAL OF THIRD ITEM OF THIS PAGE ==>						GRAND TOTAL FOR ALL PAGES ==> 0.00				

Exhibit 6

From: Muzorori, Walter [<mailto:Walter.Muzorori@GenesisHCC.com>]

Sent: Thursday, June 05, 2014 3:11 PM

To: CSALINE Ivan Kokorzhyskyi

Cc: Ronald Machumi Transnet National Ports Authority CPT (Ronald.Machumi@transnet.net); rmachumi@gmail.com; CSALINE Ekaterina Fouxon

Subject: RE: Cargo

Ivan,

Please be advised that I do not need my cargo in Cape Town.

From: CSALINE Ivan Kokorzhyskyi [<mailto:ivan@csaline.com>]

Sent: Thursday, June 05, 2014 3:03 PM

To: Muzorori, Walter

Cc: Ronald Machumi Transnet National Ports Authority CPT (Ronald.Machumi@transnet.net); rmachumi@gmail.com; CSALINE Ekaterina Fouxon

Subject: RE: Cargo

Dear Walter,

Understood below as no intention to discharge in Durban. We'll proceed with discharging in Cape Town.

Thank you,

Best Regards,

Ivan Kokorzhyskyi

Port Operations and Sales Coordinator

Canada States Africa Line

478 McGill Street | Montreal | Quebec | H2Y 2H2 | Canada

(O) +1.514.940.0660 | (C) +1.514.458.8730 | (F) +1.514.940.6600

Skype: csal.ivan.kokorzhyskyi | E-mail: ivan@csaline.com | www.csaline.com

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From: Muzorori, Walter [<mailto:Walter.Muzorori@GenesisHCC.com>]

Sent: Thursday, June 05, 2014 3:00 PM

To: CSALINE Ivan Kokorzhyskyi

Cc: Ronald Machumi Transnet National Ports Authority CPT (Ronald.Machumi@transnet.net); rmachumi@gmail.com; CSALINE Ekaterina Fouxon

Subject: RE: Cargo

Ivan,

The final bill of lading is Walvis Bay confirmed and, we remitted a payment for that service. I think you should honor your mistake and correct it accordingly.

Thank you

From: CSALINE Ivan Kokorzhyskyi [<mailto:ivan@csaline.com>]

Sent: Thursday, June 05, 2014 2:15 PM

Exhibit

2 7

Muzorori, Walter

From: Muzorori, Walter
Sent: Wednesday, June 10, 2015 3:05 PM
To: rmachumi@gmail.com
Subject: FW: Cargo to Walvis bay

I have been looking for this email

From: Charis Hansen [mailto:charis@arrctx.com]
Sent: Thursday, June 19, 2014 12:13 PM
To: Muzorori, Walter
Cc: rmachumi@gmail.com
Subject: RE: Cargo to Walvis bay

Dear Walter,

You will need to provide us with your final claim and all supporting documents. This will then be reviewed and expenses will be considered whether reasonable and unavoidable. As this may be something that goes through insurance, it is important that proper paperwork is in place.

Kind regards,
Charis

Charis Hansen
V.P. Sales and Customer Service, Gulf Region

ATLANTIC RO-RO CARRIERS OF TEXAS, INC
515 N. Sam Houston Parkway East | Suite 250 | Houston | Texas | 77060 | U.S.A.
(O) +1.281.931.3600 | (F) +1.281.931.5966
(C) +1.713.269.9280
Skype: charis.hansen | E-mail: charis@arrctx.com | www.arrctx.com
ISO and C-TPAT certified

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From: Muzorori, Walter [mailto:Walter.Muzorori@GenesisHCC.com]
Sent: Wednesday, June 18, 2014 9:54 AM
To: Charis Hansen
Cc: rmachumi@gmail.com
Subject: RE: Cargo to Walvis bay

Charis,

My last message was to inform you as to what costs we were going to incur. We can submit a claim but we are not sure what the procedure is.
Please advise.

Thank you

Exhibit 8

RECEIPT AND CLAIM RELEASE

We, the undersigned

being lawful holders of B/L BACP03140002

under B/L No. BACP03140002 dated 05.10.2014

for the cargo of 2 used Volvo road tractors

VIN:4V4NC9GH35N396534

VIN:4V4NC9GHX5N396529

carried on the vessel Atlantic Impala

with destination to: Cape Town

for and in consideration of the sum of \$ 5,000 [five thousand US dollars 00/100] with the receipt of which by these presents for ourselves, shippers, voyage charterers, consignee, final receivers, cargo underwriters, and for any their successors, and assigns the full in final settlement of the claim for the above mentioned carriage.

It is herein declared that with the payment of the above amount: the vessel, her engines and boilers etc., her Master and crew, her Owners, her disponent Owners or her bareboat or time Charterers, her managers/operators, Atlantic Ro-Ro Carriers Inc., her stevedores, her agents and/or any representatives, her underwriters have become fully and finally RELEASED from all in rem and in personal claims, demands, debts, obligations, liabilities, suits, liens, repairs, loss or shortage of, or damage to cargo, handling charges, any kind of expenses, any kind of taxes or duties, any kind of fees, any kind of fines and causes of action of law, in equity or in admiralty.

The undersigned represents and warrants that it is the proper party to assert this claim for aforementioned carriage and to receive the proceeds of the settlement and agrees to indemnify, defend and hold harmless the parties released herein from any further suits including any cross claims filed in any jurisdiction.

For the same consideration, it is understood that the sum paid as reflected by this receipt and claim release agreement is not an admission of fault on the part of the parties released herein, no unseaworthiness or fault of negligence of the vessel. The payment is to represent a compromise settlement concluded on without prejudice basis and in no case may mean any acknowledgement of a liability of the released parties.

Date: _____

[Name of undersigned company]

Place: _____

[signature of authorized person]

[name of the undersigned person]

[stamp of undersigned company]